

107	Grant v. Bank of America, 2026-01560009	DEMURRER – SUSTAINED WITH LEAVE TO AMEND The present complaint appears to be the fourth complaint filed by Plaintiffs Gavin and Michelle Grant to avoid nonjudicial foreclosure on their home. This court will take judicial notice of the court’s records in Gavin Grant v. Bank of America, N.A. and Clear Recon, 2017-00898495; Gavin Grant v. Bank of America, N.A. and Clear Recon, 2018-00993609; Gavin & Michelle Grant v. Bank of America, N.A., et al 2023-01332810. (Evid Code, § 452, subd. (d)(1); Scott v. JP Morgan Chase Bank, N.A. (2013) 214 Cal.App.4th 743, 752 [court may take judicial notice of its own files on demurrer on its own motion].) Each of those complaints was ultimately dismissed, and the orders of dismissal were affirmed on appeal. In the present case, Plaintiffs allege Bank of America divested itself of interest in the loan on their property. Plaintiffs also allege Bank of America’s substitution of Clear Recon as trustee was ineffective because Bank of America had no interest and no right to change the trustee. Plaintiffs also allege the notice of trustee’s sale by Clear Recon on February 20, 2026 is a new independent wrongful act (Complaint, ¶9) and therefore the final orders of dismissal in the previous cases does not bar the current complaint. However, the 2026 notice of trustee’s sale can only be a new wrongful act if Clear Recon was not properly acting as the trustee. And Plaintiffs can only assert this in the present case if they could not have done so in one of the earlier cases. Plaintiffs do not allege when they learned about Bank of America’s divestiture of its interest. The complaint alleges Plaintiffs discovered Bank of America’s internal accounting records in 2022 (¶20), and they “did not discover the chain of title until years later.” (¶53) Plaintiffs also attach to their complaint the declaration of Esquivel which raises the issue of the assignment of the Deed of Trust to the trust claiming interest which cut off Bank of America’s interest. (See also amended complaint in 2023-01332810, ¶¶36-39) The court’s tentative ruling as to Clear Recon’s demurrer is to sustain the demurrer with leave to amend all causes of action. In addition to addressing the specific issues raised by the demurrer, Plaintiff must also allege when and how they
-----	--	---

		learned about Bank of America's alleged divestiture of its interest.
108	Hamidi v. Manheim Investment, 2020-01145159	MOTION FOR RECONSIDERATION – TENTATIVE POSTED PREVIOUSLY ORDER TO SHOW CAUSE – APPEARANCES REQUIRED
109		
110	Mood v. City of Newport Beach, 2023-01332356	MOTION TO SET ASIDE/VACATE DISMISSAL – DENIED Plaintiff Ivin Mood's motion to set aside the dismissal of this action and for reconsideration is DENIED for the reasons set forth below. On February 4, 2026, Plaintiff failed to appear for a Status Conference and the Court discharged the Status Conference and set an Order to Show Cause re: Why the Case Should Not Be Dismissed for Plaintiff's Failure to Appear for April 6, 2026 at 1:30 p.m. (ROA 370.) Plaintiff failed to appear on April 6 and the Court ordered the action dismissed with prejudice. (ROA 390.) Plaintiff seeks an order setting aside the dismissal or reconsidering it pursuant to Code of Civil Procedure sections 473(b) and 1008(b). In the declaration attached to the Motion, Plaintiff asserts that he was surprised when he did not see anyone in the courtroom of Department N14 on April 6 and after waiting outside for five minutes to see if the calendar would be posted outside the courtroom, he entered to ask the Clerk whether the case would be heard. At that time, the Clerk informed Plaintiff that the case had already been called. Section 1008(b) provides, in relevant part: "A party who originally made an application for an order which was